

Why did you choose to be a lawyer?

Honestly, it was the cheapest profession where I did not have to make any investment. Not being socially well connected I could not dig roots in Delhi High Court. I went to the Supreme Court, where I had passed the exam in the first attempt and that ensured me a living. I could sign petitions for which I would be paid something by the clients.

Why Criminal Law?

I chose Criminal Law because the criminal mindset and human behaviour always fascinated me. I pursued my Masters in jurisprudence which teaches you the fundamentals of law. I was the first and last student they had who took this subject! I was always one for doing things which nobody did.

I did not go into practice immediately. Instead, I spent two years at Law institute administered by the Supreme Court.

Your approach to a case?

When I get a charge sheet one has to spend a lot of time on study because the records are really heavy and technical. One is always looking for mistakes of the people who are very skilled at hiding mistakes. Once you locate the mistakes you can expose them in cross examinations, or, in presenting the record in a different light.

Why take on cases where chances of winning are bleak?

The answer is contained in my physical structure. I am a disabled person who is unable to walk. So, I have to surmount this challenge every day of my life. Nothing comes easy to me. It has become my habit to expect challenges and find solutions to them sooner rather than later.

What makes you different from other criminal lawyers?

I used to personally study the brief of the case very closely. I never depended on others to guide me or brief me. I used to check the original records, (which hardly anyone did) because that is where you get the points. I also visited the scene of the crime, took photos etc. I have a taste for seeing things for myself— and that's

very important in law. I don't want the other person's guidance because he will give me his perspective. I like having my own perception of the situation.

I have to study the entire record at a stretch and find out the loopholes or look for mistakes caused by the trial lawyers, as well as the judge. A lot of skill is required to find the mistakes of highly



After a hiatus of over four years due to ill health, Sushil Kumar, legendary Senior Criminal Lawyer, is set to return in the New Year to the corridors of the Supreme Court to wield his unique brand of expertise in criminal law. Mr Kumar, if one recalls, was retained as her lawyer by Indira Gandhi during the Emergency. In later years he was to play a pivotal role in the outcomes of the Mohammed Afzal Guru case and Saravana Bhavan case ”

Sushil Kumar
Senior Criminal Lawyer

trained people like good trial lawyers or experienced trial judges. Still, I have succeeded by the dint of sheer hard work by diligently studying the records to locate the mistakes.

What is your perception about how much accountability is needed in the judiciary in the current scenario?

A lot of honesty is required because any misuse of criminal law can deprive somebody of his liberty; it can bring very serious consequences for someone who is falsely accused, and has the person spending many years in jail. Lawyers, investigators, judges etc all have a great responsibility to work hard on their cases and do their best for their clients.

Who would say are some of the judges who have been able to appreciate criminal law in the manner in which it should have been appreciated?

It's difficult to name just one person. Justice S. Ratnavel Pandian from Tamil Nadu in the Supreme Court was a good criminal lawyer who appreciated my hard work and understood criminal law.

We have some very courageous judges who have made personal sacrifices and taken personal interest in taking the right decisions because politicians always expect a different kind of arrangement from the one that has been given. For example, Striking down the Emergency provisions when Justice Hans Raj Khanna did not mind losing his chance to become Chief Justice of India by giving the right decision. The stakes are very high and it requires a lot of courage to take the right decision in the face of all odds.

The secret to your success?

I think it was my hard work and perseverance. Even the polio in my one leg did not break my confidence. I turned every disadvantage into an advantage. Though I could not walk around I could sit for 10 hours at a stretch and work.

My spirituality gave me a lot of strength to cope with the loss me and my wife went through after losing several children. I never gave up hope. I learned to ignore all my handicaps and worked hard and the rewards came.